

for electronic service, prior to the hearing. (Code Civ. Proc. §§ 1005(b) and 1010.6(a)(3)(B).) A notice of motion must include the date and time of the hearing, and the notice period therefore runs from the date a complete notice with the hearing date and time is served, though the defect is waivable. (Code Civ. Proc. § 1010 ["Notices must be in writing, and the notice of a motion, other than for a new trial, must state when and the grounds upon which it will be made, and the papers, if any, upon which it is to be based." (emphasis added)]; *Bohn v. Bohn* (1913) 164 Cal. 532, 536-537 [failure to include notice of date and time of hearing in notice of motion renders the notice fatally defective].) Defective notice is nevertheless waivable. (See *In De Luca v. Board of Supervisors* (1955) 134 Cal.App.2d 606, 609 [appearance despite defective notice]; *Calton v. Quint* (2000) 77 Cal.App.4th 690, 697 [opposition to motion on the merits despite defective notice].) (*Compare to Robinson v. Woods* (2008) 168 Cal.App.4th 1258, 1267 [opposing party only objected to the defective notice and made no opposition on the merits].)

Additional Meet and Confer Efforts Required

The Court has reviewed Mr. Davidson's declaration in regard to his efforts to meet and confer with opposing counsel Mr. Rupprecht or another attorney in Mr. Rupprecht's office. (Davidson Decl. ¶¶ 9-14 and Exhs. 7-10.) The 2AC was served by electronic mail on counsel for defendants Sequoia and Alder Creek on December 22, 2025, according to the proof of service attached to the pleading. With the additional two court days provided for defendants to respond under Code of Civil Procedure section 1010.6(a)(3)(B), defendants' responsive pleading was due January 23, 2026. It appears that there were scheduling conflicts for counsel for Plaintiffs and counsel for Sequoia and Alder Creek from January 14, 2026 until January 21, 2026 when defendants filed their demurrer.

Based on the continuance of the hearing on the Sequoia/Alder Creek, Plaintiffs and Sequoia/Alder Creek should have time to conduct a good faith meet and confer conference to address and attempt to narrow the issues raised by the demurrer before the continued hearing. (Code Civ. Proc. § 430.41(a).) The Court requests that the parties conduct a meet and confer by telephone, videoconference, or in person **on or before March 16, 2026**, and that counsel for Sequoia/Alder Creek file a supplemental meet and confer declaration **by March 20, 2026**.

7. 9:00 AM CASE NUMBER: C24-01921

CASE NAME: A-S PIPELINES INC., A CALIFORNIA CORPORATION VS. DAVID SEENO

***HEARING ON MOTION IN RE: APPOINTMENT OF THE HONORABLE STEVEN K. AUSTIN AS
DISCOVERY REFEREE**

FILED BY: DAVID T. SEENO

TENTATIVE RULING:

Defendants David Seeno and Gold Coast Pipelines, Inc. ("Defendants") filed a Motion for Appointment of the Hon. Steven K. Austin (Ret.) as Discovery Referee on December 18, 2025 (the "Discovery Referee Motion"). The Discovery Referee Motion was initially set for hearing on May 11, 2026. That hearing was later advanced to February 23, 2026. The motion is opposed.

Background

There are a series of lawsuits between the parties and various involved entities. See Declaration of

Charmaine G. Yu filed December 18, 2025, ¶12 *et seq.* As the Court is well aware, in these and related litigation involving other family members, there have been extensive discovery issues and retired Judge Austion was engaged previously to serve as a discovery referee to assist the parties to navigate those issue in an expedited fashion utilizing flexible techniques available to a discovery referee. *Id.*

After some back and forth amongst the parties regarding Judge Austin’s availability, it is represented that Judge Austin is available for the appointment. *Id.* at ¶18.

At this stage, there are several discovery motions pending with hearing dates of April 6, 2026 (motion for protective order), June 22, 2026 (motion to compel further discovery responses), and July 27, 2026 (two motions to compel further discovery responses). These matter are collectively referred to as the “Pending Discovery Motions.”

Analysis

In order for the court to appoint a discovery referee over the objections of a party, it must be necessary, not merely convenient. *Taggares v. Superior Court* (1998) 62 Cal.App.4th 94, 105-106; *Hood v. Superior Court* (1999) 72 Cal.App.4th 446, 449. A majority of the following factors must be present, including: (1) there are multiple issues to be resolved; (2) multiple issues to be heard simultaneously; (3) a continuum of many motions; and (4) the number of documents to be reviewed make the inquiry inordinately time consuming. *Taggares, supra*, 62 Cal.App.4th at 105; see also Rule 3.922 of the California Rules of Court (“CRC”).

The Court is less interested in argument over whether any given party agreed to the appointment, as addressed at length in the Opposition, than with whether or not such appointment is appropriate under the guiding factors.

There are a multiplicity of discovery matters pending with multiple issues to be resolved. The Court is familiar with the breadth and scope of the litigation both in these consolidated matters and other related litigation. The expanding number of discovery matters threaten to take up considerable court time and judicial resources, consistent with past experience.

While the Court is sensitive to perceived issues with prior processes before the discovery referee, the parties are encouraged to work closely with the discovery referee to create streamlined processes where appropriate. And the Court finds that this is another advantage and reason for making the referral, especially given the history of these cases and litigation.

Disposition

The Court finds and orders as follows:

1. The Discovery Referee Motion is GRANTED and the Court orders the appointment of the Hon. Steven K. Austin (Ret.) as a discovery referee (the “Discovery Referee”) herein, pursuant to Code of Civil Procedure section 640.
2. The Court finds, in its discretion, that such an appointment is necessary. The Court finds that the multiple discovery motions, the existing disputes raised by the Pending Discovery Motions and complexity of such issues require a discovery reference.
3. The Discovery Referee is appointed to hear and determine the Pending Discovery Motions and any further discovery matters herein.
4. Costs of the Discovery Referee shall be apportioned equally among the parties, except that the costs attributable to any discovery related motion shall be subject to reallocation in the

discretion of the Discovery Referee.

5. The parties to meet and confer within fourteen (14) days on a form of Discovery Referee appointment order.
6. In light of the foregoing, the Pending Discovery Motions are taken off calendar and referred to the Discovery Referee, as set forth above.

8. 9:00 AM CASE NUMBER: C24-02551

CASE NAME: ODK CAPITAL, LLC VS. THAI PHAM

***HEARING ON MOTION IN RE: RECONSIDERATION OOF ORDER DENYING MOTION TO SET ASIDE DEFAULT.**

FILED BY:

TENTATIVE RULING:

Rise Management Group filed its Motion to Set Aside Default Judgment on February 28, 2025 (the "Motion to Set Aside Default Judgment").

Background

A default money Judgment was entered herein against defendants and judgment debtors Rise Group Management and Thai Pham ("Defendants") on January 29, 2025 (the "Judgment"). The principal damages awarded were \$35,006.15, with a total judgment of \$37,426.30. *Id.* at ¶16.

On February 28, 2025, Rise Management Group filed a motion to set aside the default Judgment. The motion was denied without prejudice for failure to file a proof of service. See Minute Order dated June 16, 2025.

The motion was re-filed on June 25, 2025 and set for hearing on October 13, 2025. The hearing was continued to December 8, 2025.

At the hearing, the Court noted that the renewed motion was filed at the same time as a prior pending appeal. The moving party was directed to re-file the motion and the hearing date was continued to February 23, 2026.

Analysis

Notwithstanding the Court's direction, it does not appear that the motion was re-filed or re-served in advance of the continued hearing date. No further proof of service appears on the Court's docket.

Disposition

The Court finds and orders as follows:

1. The Motion to Set Aside Default Judgment is DENIED, without prejudice.
2. The Court shall issue the order after hearing.